

This motion will be continued to 1/12/27 at 9 a.m.

Plaintiff to provide notice of the hearing to Defendant, and to serve a copy of the motion.

3. 9:00 AM CASE NUMBER: L23-05751

CASE NAME: CITIBANK, N.A. VS. PATRICIA TEOTONIO

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CITIBANK, N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed, but the Plaintiff provided mail service of the Motion and notice of the hearing to an address for the Defendant that has not been used in this case (Santos Lane). Defendant did not provide an Answer, has filed no other pleadings, but Plaintiff personally served Defendant at a different address (Homestead).

It is unclear from where Plaintiff has acquired this Santos Lane address. There is no evidence that it actually is a proper mailing address for Defendant.

Thus, this court does not find that Plaintiff has properly notified Defendant of this Motion.

Disposition

Motion will be continued to 1/12/27 at 9 a.m.

Plaintiff to provide proper notice of hearing and to serve copy of Motion on Defendant.

4. 9:00 AM CASE NUMBER: L24-08932

CASE NAME: CITIBANK, N.A. VS. DOMINIC COSMI

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY:

***TENTATIVE RULING**

Plaintiff originally filed a Motion to enter judgment per stipulation on 5/1/26, with a hearing date of 8/4/26. However, on 8/6/26, this court found that Plaintiff had not properly noticed Defendant, because there was no evidence that the address they used to provide notice was, in any way, linked to the Defendant. As of 8/6/26, Defendant had

not provided an Answer, and Plaintiff had not filed a proof of service of process.

The court continued the Motion to 9/8/26, 9am, and ordered Plaintiff to properly notify Defendant.

On 8/12/26, Plaintiff filed a proof of service of the process documents, reflecting that they served Defendant on 11/18/24, through substitute service, at the address that was used for the Motion filed on 5/1/26.

However, there is no indication that Plaintiff notified Defendant of the 9/8/26, hearing.

Disposition

This Motion will be continued, one last time, to 1/12/27, 9am.

Plaintiff is to notify Defendant of the new hearing date.

5. 9:00 AM CASE NUMBER: L24-11692

CASE NAME: LENDMARK FINANCIAL SERVICES, LLC, A LIMITED LIABILITY COMPANY VS. DAVID JOHNSON

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**

FILED BY: JOHNSON, DAVID

***TENTATIVE RULING**

Mr. Gramajo, counsel for Defendant, filed a Motion to be relieved as counsel, along with a Declaration. He has provided notice to his client, the Defendant.

After a review of the Declaration, this court finds good cause to grant counsel's Motion.

Disposition

Motion will be granted.

Counsel for Defendant to file Order, provide written notice to Defendant, and to file proof of that notice.

6. 9:00 AM CASE NUMBER: L25-00011

CASE NAME: DISCOVER BANK VS. JUAN CRUZ

***HEARING ON MOTION IN RE: NTC AND MTN TO VACATE JUDGMENT**

FILED BY:

***TENTATIVE RULING**

Defendant filed a Motion, on 5/13/26, to vacate Judgment. The Motion is unopposed, but the Motion was originally scheduled to be heard 8/4/26, at which time the court found that Defendant had not provided any notice to the Plaintiff and continued the Motion to 9/8/26. The court also ordered